BYLAWS

OF

Upper Perkiomen Community Church

A Pennsylvania Nonprofit Religious Corporation

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PREAMBLE

These Bylaws presuppose that the Holy Bible constitutes the only and all sufficient roll of faith and practice for this Church. Therefore, in all things pertaining to system and order, the New Testament, that part of God's Word which describes and defines the Christian Church and its functioning, shall be the Church's guide when its teaching is clearly apparent. These Bylaws are (only) to provide direction to the Church in other matters not specifically addressed by the New Testament and to fulfill necessary legal and business requirements.

ARTICLE 1: LOCATION OF OFFICES

The name of this corporation is **Upper Perkiomen Community Church**; hereby referred to as "Church" throughout the remainder of these Bylaws. It is a **Pennsylvania** nonprofit religious corporation with principal offices in **Montgomery County, Pennsylvania**.

The principal office is located at:

258 Main Street

East Greenville, PA 18041 The designation of the county or state of the Church's principal office may be changed by amendment of these Bylaws. The Church may change the principal office.

The Church may also have offices at such other places, within or without its state of incorporation, where it is qualified to do business, as its business and activities may require, and as the Church may, from time to time, designate.

ARTICLE 2: PURPOSE

The purpose, for which this Church is formed, is simply to "Love God and Love Others". This purpose is derived from the commandment of our Lord and Savior Jesus Christ in Matthew 22:36-40 (ESV) where it states "'Love the Lord your God with all your heart and with all your soul and with all your mind.' This is the first and greatest commandment. And the second is like it: 'Love your neighbor as yourself.' All the Law and the Prophets hang on these two commandments."

In addition to this the Core Values expand on the purpose of the Church. A copy of the Core Values, as amended or otherwise altered to date shall, signed and certified by the Secretary, be made available to the Member's, as defined below, at all reasonable times during normal office hours.

This Church is organized exclusively for one or more of the purposes as specified in Section 501(c)(3) of the Internal Revenue Service Code, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) of the Internal Revenue Service Code.

The Church has been incorporated in the State of **Pennsylvania** for legal purposes, but said incorporation shall, in no way, interfere with the spiritual organization of the local church as given in the New Testament.

ARTICLE 3: DOCTRINAL STATEMENT

The Doctrinal Statement is a separate document from the By-Laws of the Church. A copy of the Doctrinal Statement, as amended or otherwise altered to date shall, signed and certified by the Secretary, be made available to the Member's at all reasonable times during normal office hours.

ARTICLE 4: MEMBERSHIP

Section 4.1 Members

The Members of this Church shall:

- Consist of those who have complied with the requirements set forth in Section 4.2 of this Article.
- Have properly presented themselves for membership in accordance with the procedures determined by the Elder Board.
- Have been enrolled as Members on the membership roster.
- Not hold more than one membership category per person.

Membership in this Church shall not vest in any Member any distributions from the Church during the existence of the Church but shall only entitle the Member to vote at meetings of the Members. Membership shall not be assignable inter vivos by any Member, nor shall membership vest to any personal representative, heir or devisee.

Section 4.2 Requirements for Membership

A Member must acknowledge that he/she has accepted Jesus Christ as his/her personal Lord and Savior, give assurance of a desire to live a consistent Christian life, submit to the authority of Scripture and accept the Church Doctrinal Statement. A Member will also agree to support the Church By-Laws, UPCC Core Values, financially support, and serve in the ministry of the Church.

Candidates for membership shall be 18 years of age or older. A Member will have received the ordinance of water baptism by immersion following conversion and a willingness to receive the Lord's Supper according to scriptural teaching. Candidates must have attended and completed membership classes, and must be interviewed by an Elder or designee of the Elder Board. Those candidates who meet with the approval of the Elders or designees of the Elder Board present and voting (at the meeting where candidates are considered) shall be approved for membership.

Section 4.3 Types of Membership

There shall be two types of membership: Voting Members and Non-Voting Members. Individuals who elect to be Non-Voting Members shall agree to comply with all of the By-Laws set forth governing Voting Members with the exception being that Non-Voting Members do <u>not</u> have the following privileges:

- Voting rights
- Hold any Ministry Leadership positions(s)

Section 4.4 Removal of Members

Membership of any individual shall cease by the acknowledgment of the Elder Board and upon the happening of any of the following events:

A. Death
A deceased Member's name shall be removed from the Church membership roll.

B. Resignation
A Member may voluntarily request in writing to be removed from the Church membership roll, provided that the Member is not currently the subject of disciplinary proceedings. A Member's name shall be removed from the Church membership roll when a Member joins another church.

C. Inactivity
The Elder Board shall periodically review the Church membership roll. Any Member who, without reasonable cause, has neglected to attend services of the Church for a period of 4 weeks or more shall be contacted concerning the lack of interest so

evidenced. If, after the contact, the Member continues to be absent for another 4 weeks, or if the Member cannot be contacted after reasonable effort, the Elder Board may vote by Simple Majority to remove the Member's name from the Church membership roll.

D. Discipline
Termination of Church membership for disciplinary reasons shall be handled in accordance with By-Law Article 4 - Section 4.5

Section 4.5 Discipline of Members

Members who become unfaithful to the Lord Jesus and His Word, or live inconsistently with a Christian profession, or refuse to abide within the framework of the Church's Doctrinal Statement and By-Laws, may be excluded from membership by Simple Majority vote of the Elder Board after procedurally following the steps outlined in Matthew 18:15-20 and I Corinthians 5.

If the individual's disobedience or divisiveness persists, the Elder Board shall remove him/her from the membership list following a Simple Majority vote of the Elders. Such a one may be restored following a change of heart and a trial period, upon the Board of Elder's discretion.

Section 4.6 Place of Meetings

Notwithstanding anything to the contrary in these Bylaws any meeting whether regular, special or adjourned of the Members of this Church may be held at any place which has been designated by the Elder Board.

Section 4.7 Regular Annual Meetings

The membership of the Church shall meet at least once each calendar year. This meeting shall take place at least one calendar month prior to the end of the fiscal year.

The Elder Board shall make a public announcement from the pulpit at least two Sundays in advance of the meeting and in writing (regular mail and/or electronic mail) to the membership before the meeting. Notice of the annual meeting shall specify the place, the day and the hour of the meeting, and the general nature of the business to be transacted. A quorum is necessary if any decisions are to be made at the annual meeting. A quorum is defined by Section 4.9 of the By-Laws.

The Lead Elder (or his designee) shall prepare the agenda and shall conduct the meeting.

Section 4.8 Special Meetings

Special meetings of the Church membership may be called only by the Elder Board.

The Elder Board shall make a public announcement from the pulpit at least two Sundays in advance of the meeting and in writing to the membership before the meeting.

Notice of any special meeting shall specify the place, the day and the hour of the meeting, and the general nature of the business to be transacted.

The Lead Elder (or his designee) shall prepare the agenda and shall conduct the meeting.

Section 4.9 Quorum
At all meetings, whether regular or special, a quorum shall be 50% or more of the Voting Members who are eligible to vote. At the discretion of the Elder Board, the quorum may include both members physically present at the meeting or members voting by absentee ballot.

If a quorum is not present at the time of the vote, an alternative date will be scheduled at the earliest date possible.

Section 4.10 Absentee Voting

The privilege of absentee voting will be extended at the discretion of the Elder Board upon individual request.

Section 4.11 Powers Reserved to Voting Members

In addition to any powers of the Members specifically set forth in these Bylaws or reserved to the Members by the Corporations Code of Pennsylvania, the following powers are reserved to the Voting Members as noted below. A quorum must be present for a Church meeting to be official. Voting Members are allowed only one vote per member.

A. Business shall require a 3/4th majority vote of the quorum.

1) Business requiring a Majority 3/4th vote shall include:
   i. Election / Hiring / Removal of the Lead Elder.
   ii. Amending, changing or otherwise altering the Doctrinal Statement.
   iii. Acquisition or sale of Church real estate.
   iv. Incurring of any Long-Term Debt.
   v. Amending, changing or otherwise altering these By-Laws.
   vi. Election of Lay Elders and Deacons.
   vii. Budget

2) Business requiring the 3/4th Majority will be done by secret ballots.

3) Tabulation of secret ballots (yeas and nays, not abstains) will be performed by at least two Voting Members.

4) Business requiring a 3/4th majority must receive a positive vote from at least 75% of the quorum.

5) Secret ballots shall be destroyed right after the ballots have been counted.

B. The By-Laws, including the doctrinal statement, may be altered or amended at any duly called meeting of the church by a ¾ Majority vote. In order for such an amendment to be considered the proposed amendment or alteration must be published to the congregation at least 30 days prior to any action being taken. Further, the Church shall supply proper notice of the meeting, consistent with the requirement in Section 4.7.

ARTICLE 5: CHURCH GOVERNANCE

Section 5.1 Church Government

Christ is the head of UPCC (Ephesians 5:23) and exercises His authority through Scripture, which is our final authority for doctrine and practice (2 Timothy 3:16-17). Where Scripture directs we are obligated to obey; where Scripture is silent we have freedom of conduct within the principles of Scripture.

The governance of UPCC is under the oversight of a plurality of men who are known variously but synonymously as elders or overseers (1 Timothy 3:1, 5:17; Titus 1:5,7; 1 Peter 5:1-2, Acts 20:17,28), who are appointed by the Holy Spirit, recognized by the Voting Members (Acts 20:28; 1 Thessalonians 5:12) as "Elders" and identified jointly as the Elder Board. The Elders are assisted in their role by men known as "Deacons" (1 Tim 3:8-13; Phil 1:1; Acts 6:1-6; Rom 16:1), who are also recognized by the Voting Members and identified jointly as the Deacon Board.

Section 5.2 Elders

A. An Elder is a spiritually mature and biblically qualified man who serves as a leader of UPCC. A qualified man has prayerfully considered & desires the office of Elder and demonstrates the biblical qualifications as given in 1 Timothy 3:1-7; Titus 1:5-9; 1 Peter 5:1-4, has been a Voting Member of UPCC for at least six months (except vocational elders), has been baptized by immersion following conversion, and is in full agreement and support of the Doctrinal Statement and Core Values, as defined in Articles 2 and 3.

B. The number of Elders may include as many as are needed, biblically qualified and affirmed by the Voting Members. The Lead Elder shall serve as Chairman of the Elder Board until such time as he is removed, resigns, or is incapacitated. Upon removal, resignation, or incapacitation, the remaining Elders shall elect an interim Chairman of the Elder Board and interim President of the Church at the next Elder Board meeting. The desirable ratio is one Elder for at least every 25 regular attendees. The number shall be determined by the Elder Board with a minimum of 3 Elders. The minimum ratio of Lay Elder to Vocational Elder shall be one to one 1:1, with the goal of being at least two to one 2:1.

C. Elders shall be recognized by the following procedure:
   1. The Elder Board shall seek out from among the Voting Members of UPCC qualified men to present to the Voting Membership the names of potential Elders.

   2. Each potential elder must undergo a Child Abuse Clearance with the Department of Public Welfare as well as a Police Criminal Record Check with the Commonwealth of Pennsylvania. Each potential elder must also undergo a Criminal History Background check with the Federal Bureau of Investigations. Additional rechecks may be asked for on a reoccurring basis as deemed necessary at the request of the Elder Board.

   3. Each potential Elder, except vocational elders, will be recognized by a 3/4th Majority vote of the Voting Members, as defined in Article 4.11.

   4. Each potential elder shall undergo biblical elder training by the lead elder or his designee.

D. An Elder who fails to continue to meet the biblical qualifications or to fulfill the requirements of the office may be removed from office. The remaining Elder Board will seek to restore him or failing to do so, may remove him from office by Simple Majority vote (1 Timothy 5:19-20). Upon leaving office each elder shall turn over to the Lead Elder, in good order, such church monies, books, records, minutes, lists, documents, contracts, passwords, keys or other property of the church as have been in the custody of such Elder.

E. Because God has ordained marriage and defined it as the covenant relationship between a man, a woman, and Himself, UPCC will only recognize marriages between a biological man and a biological woman. Further, the elders and staff of UPCC shall only participate in weddings and solemnize marriages between one man and one woman. Finally, the facilities and property of UPCC shall only host weddings between one man and one woman and with the approval of the facilities team through the building use application process. The above policies are consistent with the Doctrinal Statement, belief, and practice of the church. Any infringement upon this practice would be considered a violation of its exercise of religious expression.

Section 5.3 Deacons

A. A Deacon is a spiritually minded man who serves the membership under the direction of the Elder Board (Acts 6:1-6; Philippians 1:1). The responsibilities of the Deacon Board are limited to those delegated to it by the Elder Board in order to free the Elders for the elder responsibilities of UPCC. A deacon is one who demonstrates the biblical qualifications as given in 1 Timothy 3:8-13, has been a Voting Member of UPCC for at least six months, has been baptized by immersion following conversion, and is in full agreement and support of the Doctrinal Statement and Core Values, as defined in Articles 2 and 3.

B. The number of Deacons may include as many as are needed, biblically qualified and recognized by the Voting Members. The number shall be determined by the Elder Board.

C. Deacons shall be recognized by the following procedure:

1. The Elder Board shall seek out from among the Voting Members of UPCC qualified men to present to the Voting Membership the names of potential Deacons.

2. Each potential deacon must undergo a Child Abuse Clearance with the Department of Public Welfare as well as a Police Criminal Record Check with the Commonwealth of Pennsylvania. Each potential deacon must also undergo a Criminal History Background check with the Federal Bureau of Investigations. Additional rechecks may be asked for on a reoccurring basis as deemed necessary at the request of the Elder Board.

3. Each potential Deacon will be recognized by a 3/4th majority vote of the Voting Members.

4. Each potential deacon shall undergo biblical deacon training by the lead elder or his designee.

D. A Deacon who fails to continue to meet the biblical qualifications or to fulfill the requirements of the office may be removed from office. The Elder Board will seek to restore him or failing to do so, may remove him from office by Simple Majority vote (1 Timothy 5:19-20). Upon leaving office each Deacon shall turn over to the Lead Elder, in good order, such church monies, books, records, minutes, lists, documents, contracts, passwords, keys or other property of the church as have been in the custody of such Deacon.

Section 5.4 Reaffirmation

Bi-annually, each Elder and Deacon must indicate full agreement and support of the Doctrinal Statement, Core Values, and any written standards of conduct established by UPCC (Titus1:9; Acts 20:28-32).

ARTICLE 6: OFFICERS

Scripture teaches that the local church is to be governed by a council of Elders subject to the ultimate authority of Christ and Scripture. A council of Elders who share leadership and are organized as an Elder Board governs UPCC as defined in Article 5. All Officers are ultimately subject to the authority of the Elder Board.

As an accommodation to legal relationships outside the Church, the Lead Elder shall serve as the President of the Church. The Elders shall appoint a Treasurer and a Secretary of the Church.

Section 6.1 Qualifications for Officers

A. An Officer is a spiritually minded person who serves the membership under direction of the Elder Board. The responsibilities of the Officer are defined in Section 6.2 Officer Duties. A qualified individual will be a spiritual person demonstrating a love for the Lord and display a consistent walk with Christ. They shall be a Voting Member of UPCC, baptized by immersion following conversion, and are in full agreement and support of the Doctrinal Statement and Core Values.

B. Officers shall be recognized by the following procedure:

1. Each officer must undergo a Child Abuse Clearance with the Department of Public Welfare as well as a Police Criminal Record Check with the Commonwealth of Pennsylvania. Each officer must also undergo a Criminal History Background check with the Federal Bureau of Investigations. Additional rechecks may be asked for on a reoccurring basis as deemed necessary at the request of the Elder Board.

2. The Lead Elder shall hold the office of President.

3. The Elder Board shall appoint a qualified man or woman to the office of Secretary and Treasurer.

4. No person can hold more than one office at a time.

5. The Secretary and the Treasurer shall serve at the sole discretion of the Elder Board and are subject to appointment or removal at any time.

6. The Secretary and the Treasurer shall serve for a period of 1-year. These appointments will be reviewed and approved at the start of each fiscal year by a simple majority vote of the elder board.

Section 6.2 Duties of Officers

A. President
The President (or his designee) shall prepare the agenda and shall conduct Church Government meetings. The President may execute contracts and agreements in the following scenarios:

1. Ordinary course of Church business.

2. Execution of which has been authorized by the Board of Elders.

B. Secretary
The Secretary shall preserve a correct record of all business transacted by the Elder Board and the Church and of other items of interest that occur in its history. He / She shall perform other duties as may be reasonably required of such office.

C. Treasurer
The Treasurer shall be responsible for the following:

1. Validate that the church financial operating procedures are being followed. These procedures include but are not limited to the process for depositing of all church money, oversight of disbursement of all funds and keeping a full and accurate account of all receipts and expenditures. Any changes to the financial operating procedures require approval by a Simple Majority vote of the Elders.

2. Oversee all financial transactions and make available a financial report at the request of the Elder board.

3. Facilitate a random audit to be completed at least once every three years at the request of the elder board.

Section 6.3 Removal from Office

The Secretary or Treasurer may be removed, either with or without cause, by the Elder Board, at any time by a Simple Majority vote. Resignation may be given at any time by giving written notice to the Elder Board or to the President of the corporation.

Section 6.4 Vacancies

Any vacancy of the position of Secretary or Treasurer caused by death, resignation, removal, disqualification, or otherwise, shall be filled by the Elder Board.

ARTICLE 7: LICENSING / ORDINATION

Section 7.1 Ordination

A. Authority to Ordain.

Ordination by the laying on of hands is recognition of one called and gifted for full time Christian ministry. It is an approval of character, not a bestowal of authority. The Elder Board will determine whether any past or present member of UPCC shall be deemed qualified for such service upon presentation of his calling, gifts, education, and experience.

B. Procedure for Ordination

1. The Elder Board will seek to determine a candidate's calling to the gospel ministry, relationship with his Lord, consistency of life, reputation, basic doctrinal beliefs and giftedness.

2. The Elder Board will convene an ordination council after two weeks' notice to the UPCC Membership during which time the Voting Members of UPCC may submit comment to the Elder Board regarding the candidate's suitability for ordination.

3. The ordination council shall thoroughly examine the candidate as to his sense of call to the ministry, relationship with Christ, consistency of life, reputation, doctrinal belief, and giftedness for service.

4. Upon recommendation of the council and approval of the Elder Board, the Church shall ordain the candidate at a service for the "setting apart" of the candidate for the Gospel ministry and the laying on of hands by the Elder Board.

Section 7.2 Licensing

Any past or present member desiring to serve in Christian ministry whether as a missionary or in another capacity; may be duly Licensed by the Church after extensive examination and upon approval by the Elder Board.

A. Authority to License

The Church shall have the authority to License persons for service in Christian ministry, so as to identify them in that capacity for legal and/or tax purposes.

B. Procedure for Licensing

1. The Elder Board will seek to determine a candidate's qualifications for such service including calling, relationship with The Lord Jesus, consistency of life, reputation, basic doctrinal beliefs, and giftedness.

2. When the Elder Board deems the candidate qualified, the Elder Board shall arrange for an appropriate Licensing in a public service of the Church.

3. Relicensing shall be at the discretion of the Elder Board.

Section 7.3 Discipline

The Elder Board has the authority to discipline and to revoke the credentials of any one ordained or duly licensed under these By-Laws.

ARTICLE 8: INDEMNIFICATION

Section 8.1 Limitations of Indemnification

An indemnified person shall stand in a fiduciary relationship to UPCC and shall perform his or her duties in good faith and in a manner he or she reasonably believes to be in the best interests of UPCC, and with such care, including reasonable inquiry, skill, and diligence, as a person of ordinary prudence would use under similar circumstances. In performing his or her duties, an indemnified person shall be entitled to rely in good faith on information, opinions, reports, or statements made known to him or her in the normal course, unless he or she knows or has reason to know the information is inaccurate.

Any indemnification made under this Article, may be made by UPCC only as authorized in the specific case on a determination that indemnification of the elder, elder, deacon, officer, employee, or agent is proper in the circumstances because he/she has met the applicable standard of conduct set forth above in this Article. The determination shall be made:

A. By a Simple Majority vote of a quorum consisting of the Elder Board who were not and are not parties to or threatened with the action, suit, or proceeding;

B. If the described quorum is not obtainable or if a Simple Majority vote of a quorum of disinterested elders so directs, by independent legal counsel in a written opinion; or,

C. By a Majority vote of the members of the church.

Section 8.2 Timing of Indemnification

Expenses of each person seeking indemnification under this Article, may be paid by UPCC as they are incurred, in advance of the final disposition of the action, suit, or proceeding, as authorized by the Elder Board in the specific case, on receipt of an undertaking by or on behalf of the elder, elder, deacon, officer, employee, or agent to repay if it is ultimately determined that he or she is not qualified to be indemnified by the church.

Section 8.3 Extent of Indemnification

The indemnification provided by this Article shall be deemed to be discretionary unless otherwise required as a matter of law or under any agreement or provided by insurance purchased by the church, both as to action of each person seeking indemnification under this Article in his/her official capacity and as to action in another capacity while holding that office, and may continue as to a person who has ceased to be an elder, deacon, officer, employee, or agent and may inure to the benefit of heirs, executors, and administrators of that person.

ARTICLE 9: LEAD ELDER

Section 9.1 Responsibilities

The Lead Elder is responsible for all day-to-day operations of the organization and shall delegate responsibility and authority to staff members as he deems appropriate. The Lead Elder shall be ex-officio member of all committees, boards, and organizations of UPCC and serve as President of UPCC in matters requiring such an office. The Lead Elder shall serve with the Elders and share in the general oversight of the spiritual life of the church.

Section 9.2 Qualifications

The qualifications for the Lead Elder shall include those listed in Chapter 3 of the first book of Timothy and Chapter 1 of the book of Titus. Any other qualifications shall be determined by the Elder Board.

Section 9.3 Selection

The Elder Board shall nominate a candidate for the position of Lead Elder and he shall be elected by the Voting Members of UPCC at a Special Meeting called for that purpose as defined in section 4.11 of these By-Laws. Upon installation of the Lead Elder of the church; he and if married, his wife shall be Voting Members of UPCC.

Section 9.4 Removal or Resignation from Office

A. Removal from Office
The Elder Board may recommend the Lead Elder for removal from his position in the following circumstances:

- He becomes physically incapacitated.
- Becomes spiritually unqualified.
- He engages in activities directly contrary to the interests, theology, or philosophy of the church.

Before any such removal occurs, the Lead Elder shall be advised of the allegation and the basis for the allegation and shall be given an opportunity to present any contrary evidence or explanation to the Elder Board at a meeting of the Elder Board.

Recommendation for removal must be approved by a Simple Majority vote of all of the Elder Board, excluding the Lead Elder. Upon recommendation of the Elder Board, a 3/4 Majority vote to remove the Lead Elder must be approved at a Special Meeting of the Voting Members as defined in section 4.11 of these By-Laws.

B. Resignation from Office
The Lead Elder shall be free to resign as he feels led of the Holy Spirit.

C. Upon leaving office the Lead Elder shall turn over to the Elder Board or it's designate, in good order, such church monies, books, records, minutes, lists, documents, contracts, passwords keys or other property of the church as have been in the custody of the Lead Elder.

Section 9.5 Vacancy and Succession of Lead Elder

A. Succession
Upon the removal of the Lead Elder (via resignation, death, or dismissal), leadership privileges will immediately and automatically be transferred to the Elder Board. The Elder Board will nominate and elect by Simple Majority vote, a temporary Lead Elder until a new Lead Elder is voted in.

B. Vacancy
Upon the removal of the Lead Elder (via resignation, death, or dismissal), a Pulpit Committee will be appointed by the Elder Board consisting of at least two Elders, two Deacons, and two Voting Members. The two Voting Members shall not be paid staff, Elders or Deacons.

ARTICLE 10: VOCATIONAL ELDER(S)

Section 10.1 Responsibilities

The responsibilities of each Vocational Elder shall be defined by the Lead Elder.

Section 10.2 Qualifications

The qualifications for a Vocational Elder shall include those listed in Chapter 3 of the first book of Timothy and Chapter 1 of the book of Titus. Any other qualifications shall be determined by the Lead Elder.

Section 10.3 Selection

The Elder Board shall select all Vocational Elders, with a Simple Majority. Upon installation of the Vocational Elder of the church; he and if married, his wife shall be Voting Members of UPCC.

Section 10.4 Removal or Resignation from Office

A. Removal from Office
The Lead Elder may remove a Vocational Elder from office, with Simple Majority vote of the Elder Board.

B. Resignation from Office
The Vocational Elder shall be free to resign as he feels led of the Holy Spirit.

C. Upon leaving office the Vocation Elder shall turn over to the Lead Elder, such church monies, books, records, minutes, lists, documents, contracts, passwords, keys or other property of the church as have been in the custody of the Vocational Elder.

ARTICLE 11: PAID NON-ELDER/HOURLY STAFF

Section 11.1 Responsibilities

The responsibilities of each non-elder staff member shall be defined by the Lead Elder; or his delegate.

Section 11.2 Qualifications

Each non-elder staff member is charged to maintain the highest standards of conduct and performance so as to reflect honor on the Lord Jesus Christ. They must represent UPCC favorably in the community. They must be in full agreement with the UPCC Core values and Doctrinal statement.

Section 11.3 Selection

The Lead Elder shall select all non-elder members of the paid staff with Simple Majority vote of the Elder Board.

Section 11.4 Removal from Office

The Lead Elder may remove a non-elder paid staff member with Simple Majority vote of the Elder Board.

Upon leaving office paid staff shall turn over to the Lead Elder, such church monies, books, records, minutes, lists, documents, contracts, passwords, keys or other property of the church as have been in the custody of the paid staff.

ARTICLE 12: DISSOLUTION

Upon the dissolution of the corporation, the Elder Board shall as they see fit after paying or making provisions for the payment of all liabilities of the corporation, dispose of all assets of the corporation exclusively for the purposes of the corporation at the discretion of the Elder Board to an exempt organization(s) under Section 501(c)(3) of the United States Internal Revenue Code. Any such assets not so disposed of shall be disposed of by the Court of Common Pleas of the county in which the principal office of the corporation is then located, exclusively for such purposes or to such organization(s) organized and operated exclusively for such purposes or similar purposes.

ARTICLE 13: CONFLICT OF INTEREST POLICY

Statement of Inurement: The purpose of this conflict of interest policy is to protect the interests of UPCC when it is contemplating entering into a transaction or arrangement that might benefit the private interest of a member, a member of the Elder board or volunteer who is operating in any manner on behalf of UPCC and as amplified by Section 53.4958-3 of the IRS Regulations and which might result in a possible "excess benefit transaction" as defined in Section 4958 (C)(1)(A) of the Internal Revenue Code as amplified by Section 53.4958 of the IRS Regulations. This policy is intended to supplement but not replace any applicable state and federal laws governing conflict of interest applicable to 501(c)(3) organizations.

All conflicts of interest shall be avoided by members of the Elder Board and Deacon Board. In the event a conflict of interest is identified by either the Elder Board or Deacon Board; members directly affected by the conflict of interest shall abstain from voting on the topic.

ARTICLE 14: CONSTRUCTION AND TERMS

Section 14.1 Construction and Terms

If there is any conflict between the provisions of these Bylaws and the Articles of Incorporation of this corporation, the provisions of the Articles of Incorporation shall govern.

Should any of the provisions or portions of these Bylaws be held unenforceable or invalid for any reason, the remaining provisions and portions of these Bylaws shall be unaffected by such holding.

All references in these Bylaws to the Articles of Incorporation shall be to the Articles of Incorporation, Articles of Organization, Certificate of Incorporation, Organizational Charter, Corporate Charter, or other founding document of this corporation filed with an office of the state of **Pennsylvania** and used to establish the legal existence of this corporation.

The following documents are herein after incorporated by reference:

- The Holy Bible
- Core Values
- Doctrinal Statement(s)
- Position Statements

These documents are to be used to allow God's appointed leaders to lead, guard, guide, equip, disciple, discipline, and love the UPCC Membership on a Biblical basis.

Section 14.2 Definitions

The following is a list of terms with matching definitions. This list is intended to be used as a reference within this By-Laws document. In the event of any conflict between the definition(s) below and any use of these term(s) elsewhere in this By-Laws document; the actual use of the term in the By-Laws will prevail.

Church:
All uses of the word Church shall be synonymous with "Corporation" as the corporation is legally named and defined in Article 1 and Article 2.

Deacon Board:
Deacon Board is jointly identified as all of the UPCC Deacons (Article 5.3.A).

Elder Board:
Elder Board is jointly identified as all of UPCC Elders (Article 5.2.A).

Lay Elder:
A Lay Elder will not receive pay or compensation for their service of time at UPCC.

Lead Elder:
The Lead Elder may also be known as the Senior Elder. Lead Elder serves as both Chairman of the Elder Board and President of the Church.

Long-Term Debt:
UPCC debt that lasts more than 12 months (Article 4.11.B).

Ministry Leadership:
Individuals who serve in charge of a specific area of ministry are serving as ministry leaders. Individuals holding a Ministry Leadership position must be Voting Members (Article 4.3). An example of a Ministry Leadership position might be Director of Sunday School, etc.

Non-voting Members:
Members who comply with all of the By-Laws as set forth in this document. Non-voting Members do not have access to the privileges awarded to Voting Members (Article 4.3).

Vocational Elder:
Vocational Elders are elders who receive compensation (Article 10).

Paid Staff Member:
Paid Staff member shall refer to individuals who are members of the Lead Elder's staff. These individuals are responsible for various tasks assigned by the Lead Elder.

Regular Attendee:
An adult or child who attends both the 1st & 2nd hour Sunday services on a consistent basis. This count is typically used to identify a desirable ratio of Elders to attendees (Article 5.2.B)

UPCC:
An acronym for Upper Perkiomen Community Church used to identify the name of the "Corporation" as defined in Article 1. UPCC is typically used in the document to express the identity of the Church/Corporation in a more distinguished way.

Voting Members:
Church members whose membership grants them voting rights as defined in these By-Laws (Article 4.3).

CERTIFICATE OF SECRETARY

I, the undersigned, being the Secretary of **Upper Perkiomen Community Church**, do hereby certify that the above Bylaws were adopted by the UPCC Membership of said corporation in a regularly called meeting on the documented date below. Said Bylaws are, as of the date of this certification, the duly adopted and existing Bylaws of this corporation.

Michael Vengvlis
Name of Secretary, Secretary

5/6/2025
(Date)